

HARGROVE

ESTATE PLANNING PLAYBOOK WEBINAR SERIES

IRREVOCABLE TRUST — IS IT REALLY THAT IRREVOCABLE?

Presented by Tim Fisk and Jessi Konrad

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Meet the Panelists



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A COMMON MISCONCEPTION ABOUT IRREVOCABLE TRUSTS

"Can we just make a few changes to this Irrevocable trust?"

Why This Topic Matters for Advisors



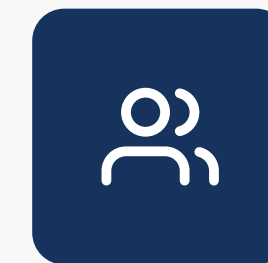
Advisors regularly encounter clients with irrevocable trusts, whether it was created or inherited



Questions naturally arise about whether certain provisions be updated or improved



“Irrevocable” is not always as final as it sounds — but changes are never simple



This misunderstanding is common even among experienced wealth advisors

WHAT ACTUALLY DETERMINES FLEXIBILITY

The trust instrument comes first, then applicable state law

The Trust Instrument Comes First

- ✓ Whether changes are possible depends entirely on the trust's terms
- ✓ Well-drafted modern irrevocable trusts build flexibility in from the start
- ✓ Many older or simpler trusts (e.g., a 12-page trust) include none of these features — leaving fewer, if any, options
- ✓ If the trust is silent, applicable state law determines the available options

Built-In Flexibility: Three Key Roles



Advisory Committee



Trust Protector



Independent Special Trustee

Appointed agents who can make certain changes without court involvement:



Appoint assets to a new trust for the beneficiaries



Change administration provisions



Update successor Trustees



Change trust situs

WHEN THE TRUST LACKS BUILT-IN FLEXIBILITY

The remaining avenues and where they get complicated

Remaining Avenues



Non-judicial settlement agreements (NJSAs) — where state law allows



Decanting statutes — where state law allows



Judicial settlement agreements — where changes don't materially alter the trust's terms

State-Specific Procedural Traps

- States can impose very specific procedural requirements:
 - Formal notice to beneficiaries

 - Documented delivery

 - 30-day waiting periods

- Even a “non-judicial” settlement agreement can still require sign-off from the court
- Getting this wrong can unwind the change. State-by-state judgment is essential

HOW THE FIRM SUPPORTS ADVISORS AND THEIR CLIENTS

An attorney-led experience from start to finish

An Attorney-Led Experience for Advisors



Visibility throughout the process — your client stays advised of their progress



Ability to address a wide variety of estates, including assets in dispersed locations



Predetermined, fixed cost — no surprises



Even when an irrevocable trust can't be changed, we can help clients plan so their heirs avoid the same hurdles

Closing Takeaway

Your clients' irrevocable trusts are an opportunity, not a dead end.

An opportunity to revisit your clients' existing estate plans and make sure they don't fall into these problems.

Properly drafted plans include the requisite flexibility — so your clients and their loved ones don't run into these issues down the road.

Next Steps

Learn more about Hargrove



Email questions:
support@hargrovetfirm.com



Schedule a demo:
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Q&A

Thank you

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